

A FREE AND OPEN INTERNET

THE OPEN INTERNET ORDER (2015)



IN CONTEXT

FOCUS

Internet law

BEFORE

1996 The Telecommunications Act regulates only existing cable-modem ISPs in the US; broadband ISPs are exempt.

2010 Chile is the first country in the world to enshrine net neutrality in law.

2014 In an FCC poll in the US, 99 percent of replies support net neutrality.

AFTER

2015 EU Regulation 2015/2120 seeks to protect equal network access in Europe.

2017 The FCC reverses its 2015 ruling with a Restoring Internet Freedom Order.

2019 The District of Columbia Court of Appeals supports the FCC's decision to end net neutrality.

Almost no question about the internet and its future in the US has proved more contentious and troubled than that of net neutrality (a term coined in 2003 by Tim Wu, a law professor at Columbia University). Net neutrality is the principle that access to all content and services on the internet should be free from interference by internet service providers (ISPs). It concerns only the delivery mechanism of digital data; it does not alter the digital data itself.

However, net neutrality does determine not just how information can be accessed but, in practice, what information can be accessed. Given the ubiquity of the internet